

**25STCV20024 25STCV20024**

County: los-angeles  
Division: Civil Law and Motion  
Department: 513  
Hearing date: 2026-07-27  
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Case Number: 25STCV20024 Hearing Date: July 27, 2026 Dept: 513

Superior  
Court of California  
  
County  
of Los Angeles – Central District  
  
Department 513

Yao Li

;

Plaintiff,

vs.

Junction Inc.

, et al.,

Defendants.

Case No.:

25STCV20024

Hearing Date:

July 27, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

application

for Order to Show Cause Re: Contempt

MOVING PARTY: Plaintiff/Judgment Creditor Yao Li

RESPONDING

PARTY: No response.

Application for

Order to Show Cause Re: Contempt

The court considered the moving  
papers filed in connection with this motion. No opposition was filed.

#### DISCUSSION

Plaintiff and

Judgment Creditor Yao Li ("Plaintiff") applies to the court for an Order to Show Cause why Defendant and Judgment Debtor Michael Lin ("Defendant") should not be held in contempt for failure to comply with a Civil Subpoena Duces Tecum to appear and produce documents.

The court (1)

finds that Plaintiff has not filed an affidavit alleging the elements of contempt because Plaintiff has not alleged facts establishing that Defendant had the ability to comply with a court order and willfully failed to comply with that order, and therefore (2) denies Plaintiff's application to issue an order to show cause re contempt because the declaration submitted in support of the motion does not state a cause of action for contempt. (Code Civ. Proc., §§ 1209, 1211, subd. (a) ["When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt . . .

.”].)

“Disobedience of any lawful judgment, order, or process of the court” is contempt of the authority of the court. (Code Civ. Proc., § 1209, subd. (a)(5).) “As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. [Citations.]” (Wanke, Industrial, Commercial, Residential, Inc. v. Keck (2012) 209 Cal.App.4th 1151, 1168 [internal citation omitted].)

Plaintiff bases

her application on a Civil Subpoena (Duces Tecum) for Personal Appearance and Production of Documents, Electronically Stored Information, and Things at Trial or Hearing directed to Defendant, issued December 23, 2025 (“Subpoena”), which required Defendant to appear in court (at the judgment debtor examination of Defendant) on February 3, 2026, and produce the documents described in the attached declaration. (Waecker Decl. ¶¶ 5-6, Ex. C.) Plaintiff alleges that Defendant “willfully disobeyed that process by appearing without the required documents” at the February 3, 2026 examination. (Waecker Decl. ¶ 18.) Plaintiff further alleges that Defendant “later provided a box of bank records consisting principally of statements for approximately eight bank accounts.” (Waecker Decl. ¶ 15.) Plaintiff alleges “[t]hose statements reflect substantial financial transactions involving hundreds of thousands of dollars, . . . and confirms that responsive financial records existed and were available to him at the time of the examination.” (Waecker Decl. ¶ 15 [emphasis added].) Although Plaintiff alleges that, “[d]espite that partial production, [Defendant] has not produced the corporate documents and other categories of materials demanded by the Subpoena Package . . . ” (Waecker Decl. ¶ 16), Plaintiff does not allege that (1) Defendant had the ability to produce other documents responsive to the categories listed in the Subpoena in his possession, custody or control after providing the box of bank records, or (2) Plaintiff willfully failed to comply with the Subpoena by failing to produce such other documents after providing the box of bank records.

ORDER

The court DENIES

plaintiff and Judgment Creditor Yao Li’s application for an order to show cause re: contempt.

The court orders plaintiff  
and Judgment Creditor Yao Li to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 27, 2026

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Robert B. Broadbelt III

Judge of the Superior Court